

## 24VECV05483 24VECV05483

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24VECV05483 EIDEN V CITY OF LA

[TENTATIVE] ORDER: Defendants Monarch Camps, LLC and Los Angeles Community College District's Motion for Summary Judgment is GRANTED.

Plaintiff Joshua Eiden's Evidentiary Objections are OVERRULED as to nos. 1-9, 11-18 and SUSTAINED as to no. 10.

Defendants Monarch Camps, LLC and Los Angeles Community College District's Evidentiary Objections are OVERRULED as to nos. 1-3.

### Introduction

Defendants Monarch Camps, LLC (Monarch) and Los Angeles Community College District (LACCD) (collectively, Defendants) moved for summary judgment (MSJ) against Plaintiff Joshua Eiden's (Plaintiff) Complaint. The Complaint alleged two causes of action (COA) for general negligence and premise liability.

### Discussion

Defendants argued that there is no triable issue of fact as to either COA because there is no evidence of a breach. Plaintiff alleged that he suffered an injury due to a "dead spot" on the gymnastics floor while performing a tumbling pass. Plaintiff alleged that he was injured on October 24, 2023. (Defendant's Separate Statement of Facts (DSSF) 8-12.) Defendants provided facts to show that no dead spot was found the day after Plaintiff's incident. The day after Plaintiff's injury Charlie Nash (Nash), the Director and Coach at Defendants' gym, performed an inspection of the area where Plaintiff claimed a dead spot existed and no dead spot was found. (DSSF 15.) With this testimony, the Court finds that Defendants submitted evidence to show that no triable issue of fact exists as to the presence of a dangerous condition/dead spot. Defendants met their burden of proof on the second COA regarding premise liability/dangerous condition. Further, Defendants met their burden of proof on the second COA regarding breach of the duty of care as to "ownership, occupancy, operate, control, manage, use direct, or superintend". (See Complaint par. GN-1.) However, Defendants' fact at DSSF 15 does not address the allegation that Defendants failed to "maintain, inspect, supervise, or repair the gymnastics floor". (Id.)

As to the declaration of Christopher Angel (Angel) at paragraph 4, lines 13-14 regarding Angel's testimony that he inspected the floor and found no dead spot soon after Plaintiff's injury, the Court found the testimony to be inadmissible due to a lack of foundation. (Plaintiff's Evidentiary Objection no. 10.) Mr. Angel failed to present any facts to show his experience in gymnastics and/or how his five years of employment trained him in how to find/recognize dead spots. Because Angel's

declaration as to his inspection shortly after the incident is inadmissible, the Court finds that Defendants' fact assertion in DSSF 14 is not supported by the submitted evidence. Because evidentiary support is lacking as to DSSF 14, the Court did not consider the asserted fact in reviewing Defendants' initial burden on the MSJ.

Further, as to Defendants' fact asserting that "no dead spot or other defect on the gymnastic center's spring floor has been identified since Plaintiff sustained his injury" (DSSF 16), the Court finds that Defendants' evidence does not support the asserted fact. Defendants' "Equipment Repair Record" expressly provided evidence to show that two dead spots were discovered and repaired after Plaintiff's incident – August 19, 2024, and May 9, 2025. Because Defendants' evidence does not support the fact assertion in DSSF 16, the Court did not consider DSSF 16 in reviewing Defendants' initial burden to show that no triable issue of fact exists as to the element of breach.

In support of Defendants' contention that there is no triable issue of fact as to their duty to "maintain, inspect, supervise, or repair" the gymnastics floor, Defendants submitted their Floor Inspection Sheet which showed that Defendants inspected the floor twice prior to the incident and found no dead spots. The first inspection occurred on May 26, 2023, and the second inspection occurred on August 31, 2023. (Nash Decl. par. 3, Exh. A.) With the evidence of Defendants' inspection of the gymnastics floor, Defendants sufficiently provided facts to support their contention that there is no triable issue of material fact as to a breach because Defendants performed their duty to inspect.

Because Defendants performed an inspection the day after Plaintiff's injury and none was found, Defendants' evidence shows that there is no triable issue of fact as to the existence of a dangerous condition on the gymnastics floor. Because Defendants provided that two inspections of the gymnastics floor were conducted prior to Plaintiff's injury and was found to be "clear", Defendants' evidence shows that there is no triable issue of fact as to any breach of their duty of care under the first COA for general negligence. Defendants sufficiently met their initial burden to show that no triable issue exists as to the element of breach under both COAs.

In response, Plaintiff asserted that a triable issue of fact exists as to the existence of a dangerous condition because Plaintiff's deposition testimony showed how, when, and where Plaintiff hit the dead spot on the gymnastics floor when he was injured and his prior experiences with dead spots at other gyms. (Plaintiff's Statement of Disputed Facts (PSDF) 14 and 16.) With Plaintiff's testimony of his knowledge/experience of locating dead spots, Plaintiff's testimony stating that he hit a dead spot on the day of his injury provides evidence that a dead spot existed. With the Plaintiff's testimony as to hitting a dead spot during his tumbling pass when he was injured, Plaintiff provided evidence to show that a triable issue of fact exists as to whether a dangerous condition/breach existed as to the second COA for premise liability and only a portion of the first COA for general negligence regarding a duty of care as to "ownership, occupancy, operate, control, manage, use direct, or superintend".

In regard to the duties to "maintain, inspect, supervise, or repair the gymnastics floor", Plaintiff's evidence failed to present any facts to dispute that Defendants inspected the floor. Instead, Plaintiff disputed the veracity of Defendants' Floor Inspection Sheet. (See PSDF 15.) However, disputing the veracity of Defendants' evidence is not proper to oppose an MSJ. The Court is not to weigh the evidence. Plaintiff further asserted that there was a two-month gap between the August 31, 2023, inspection and Plaintiff's October 24, 2023, injury. Plaintiff argued that the two-month period is circumstantial evidence to show that the dead spot was present for a sufficient period of time to charge the owner with constructive knowledge of the existence of the dead spot. However, Plaintiff's contention is not supported by any evidence. Plaintiff did not present any evidence to show that the random inspections by Nash are unreasonable or that a two-month gap is an unreasonable amount of time between inspections. The mere fact that two months passed between the last inspection and Plaintiff's injury is not evidence to support the contention that the time-period was unreasonable and amounts to constructive notice of the dead spot.

Because Plaintiff's testimony presented facts to show the existence of a dangerous condition/dead spot, Plaintiff met their burden of proof to show that a triable issue of fact exists as to the second COA for premise liability and a portion of the claims in the first COA for general negligence (i.e., duty of care as to "ownership, occupancy, operate, control, manage, use direct, or superintend"). Because Plaintiff met their burden to show the existence of a triable issue of fact as to the element of breach, Defendants' first argument that no triable issue of fact exists as to the element of breach is unpersuasive. Defendants' MSJ grounded upon the element of breach is denied.

Defendants then asserted that there is no triable issue of fact as to either COA because of the affirmative defense of express waiver/release of liability. (DSSF 3-5.) Defendants provided that prior to Plaintiff's use of the gym, Plaintiff signed a release of liability. The terms of the release are broad because they include a release of "any and all liability (known & unknown), negligence, actions, causes of action, debts, claims or demands of any kind and nature whatsoever, which may arise by or in connection with my participation in this program." Because Plaintiff's injury occurred and/or arose from the use of the gymnastics floor and Plaintiff expressly released Defendants from "any and all" liability, Defendants presented sufficient facts to support their affirmative defense of contractual release of liability from the injuries suffered by Plaintiff. Defendants met their initial burden to show that no triable issue of fact exists as to the affirmative defense.

In response Plaintiff objected to Defendants' evidence related to the release, but the Court overruled the objections. Plaintiff further asserted that the release was unenforceable and/or void because the release is ambiguous and not clear. Plaintiff argued that the release is not identified by any header and the font size is small. However, the Release is within a document that is only two paragraphs long and included a certification that Plaintiff read and understood the two preceding paragraphs, inclusive of the release of liability. The Court disagrees and the release of liability is unambiguous and clearly set forth. Plaintiff's failure to recall seeing/reading the two paragraphs in and of itself is insufficient to raise a triable issue of fact as to the validity and enforceability of the release of liability. Plaintiff's argument as to the release being unenforceable/void is not supported by any evidence, and the argument is unpersuasive.

Plaintiff argued that the release is unenforceable because Defendants failed to comply with Civil Code, section 1812.91, which required Defendants to either physically give or deliver by email to the customer a copy of the written contract. However, the release of liability is not covered under the Health Studio Services Act (HSSA). (Civ. Code, sec. 1812.80 et seq.) The HSSA defines a "contract for health studio services" as a contract for "instruction, training or assistance" in certain delineated physical activity or a contract "for the use by an individual patron of the facilities of a health studio, gymnasium or other facility used for any of the above purposes, or a contract "for membership in any group, club, association or organization formed for the above purposes". (Civ. Code, sec. 1812.81.) Plaintiff fails to present any facts to show that the release of liability is a contract for "instruction, training or assistance" in the delineated physical activities. Because Plaintiff failed to present any terms in the release of liability that a contract for instruction, training or assistance" in gymnastics was entered, the Court does not find the HSSA to apply to the instant release. Plaintiff's argument as to the HSSA is unpersuasive.

Plaintiff then asserted that the release of liability does not apply to gross negligence because the gymnastics floor was last inspected two months prior to Plaintiff's injury. However, Plaintiff lacks any evidence to show that Plaintiff's injury was caused by gross negligence. Plaintiff failed to present any evidence to show that a two-month gap in inspecting the gymnastics floor amounts to gross negligence, let alone an unreasonable amount of time. Because Plaintiff failed to submit any evidence to support the contention that gross negligence existed, the argument is unpersuasive and insufficient to meet Plaintiff's burden to show that a triable issue of fact exists.

Plaintiff failed to meet their burden to show that a triable issue of fact exists as to the affirmative defense with the release of liability. Because Plaintiff failed to meet their burden, the MSJ as to the release of liability is persuasive.

The MSJ is GRANTED based upon the affirmative defense.

Defendants and Plaintiff then argued as to the primary assumption of risk doctrine and the pleading element of causation. The two remaining arguments are moot based upon the above analysis on the release of liability. Even if the Court were to consider the two remaining arguments, the Court does not find the primary assumption of risk doctrine to be persuasive because there is a triable issue of fact as to whether a dead spot existed on the gymnastics floor, which arguably could have increased the risk of injury. The primary assumption of risk argument is unpersuasive. As to the causation argument, the Court found that a triable issue of fact exists as to whether a dangerous condition/dead spot existed on the gymnastics floor at the time of Plaintiff's injury. Because a triable issue of fact exists as to the presence of a dead spot, there also is a triable issue of fact as to whether the dead spot caused Plaintiff's injury. The causation argument is also unpersuasive.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.